

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 15, 2026
8:30 a.m.

4. LESLIE EDMONDS V. JEFFREY EDMONDS

23FL1077

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on February 02, 2026, to (1) set child custody and visitation; (2) grant the Petitioner exclusive temporary use, possession, and control of the real property located at 2949 Springwood Drive in South Lake Tahoe, California; (3) award attorney's fees and costs (both need-based under Family Code section 2030, and as sanctions under Family Code section 271 based on Respondent allegedly breaching his fiduciary duty under the automatic temporary restraining order in the summons (ATROS) by draining the parties' joint account); (4) require Respondent to return approximately \$239,000.00 he allegedly removed from the parties' Commonwealth Financial account; (5) require the parties to file tax returns; (6) list the real property located at 114 Keyt Way in Cotati, California, for immediate sale; and (7) require Respondent to reimburse Petitioner for post-separation expenses.

Petitioner concurrently filed a current Income and Expense Declaration (I&E), and supporting declarations from herself and her attorney. The filing of the RFO prompted the court to refer the parties to a CCRC session set for February 19, 2026. Proof of service filed February 03, 2026, shows the RFO and supporting documents (but not the court's Notice of Tentative Ruling) were electronically served upon the Respondent that same day.

On February 13, 2026, the court found good cause to grant Respondent's request to continue the CCRC hearing. The court continued the CCRC session to March 05, 2026, and ordered the Respondent to serve notice of the same on Petitioner no later than February 17, 2026. There is no proof of service in the court's file for the continued CCRC date. However, as noted below, both parties attended the re-scheduled CCRC session. Thus, the court deems Petitioner to have waived any defect in service.

On March 02, 2026, the Petitioner filed a supplemental declaration in support of her RFO, a copy of which was served upon the Respondent that same day, according to the proof of service, also filed March 02, 2026.

On March 04, 2026, the Respondent filed a declaration (not a responsive declaration to the RFO) in advance of the CCRC appointment. Respondent's declaration was electronically served upon the Petitioner on March 02, 2026, according to the proof of service filed March 04, 2026.

The court is in receipt of a CCRC report dated March 23, 2026, a copy of which was mailed to both parties and electronically served upon both parties' attorneys of record, on March 25, 2026, per the Clerk's Certificate of Mailing, also filed March 25, 2026.

On March 25, 2026, Respondent filed a Responsive Declaration to Petitioner's RFO. Proof of service filed that same day shows the Responsive Declaration was electronically served on March 25, 2026.

On April 03, 2026, Petitioner filed another supplemental declaration, which was electronically served upon the Respondent that same day, according to the proof of service filed April 03, 2026.

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On April 14, 2026, the parties submitted a stipulation regarding child custody and visitation, which the court has approved, thereby resolving the custody and visitation issues presented by the RFO.

The court grants the RFO insofar as the Petitioner requests control of the real property located at 2949 Springwood Drive in South Lake Tahoe, California. The evidence shows that the Petitioner has been in exclusive possession of said property for over two years and thus, granting the request will maintain the status quo.

The court defers the other property-related requests, as well as the request for sanctions based on the alleged breach of fiduciary duty, to the time of trial, as it is not proper to decide such issues in a “piece-meal” fashion. The court notes that the petition for dissolution has been pending since October 31, 2023.

Lastly, the court continues the hearing on the request for need-based attorney fees to April 29, 2026, because there is no current I&E submitted by the Respondent. The Respondent is ordered to file and serve his I&E on or before April 22, 2026, so the court can make its determination regarding need-based attorney fees.

TENTATIVE RULING #4: THE RFO IS GRANTED IN PART AND DENIED IN PART (REFER TO FULL TEXT). ADDITIONALLY, THE HEARING ON THE PORTION OF THE RFO RELATED TO NEED-BASED ATTORNEY FEES IS CONTINUED TO 8:30 A.M., WEDNESDAY, APRIL 29, 2026, IN DEPARTMENT 12. THE RESPONDENT IS ORDERED TO FILE AND SERVE A CURRENT INCOME AND EXPENSE DECLARATION NO LATER THAN APRIL 22, 2026. BECAUSE THERE IS NO PROOF OF SERVICE OF THE COURT’S NOTICE OF TENTATIVE RULING IN THE COURT’S FILE, THE COURT WILL NOT LIMIT THE PARTIES’ ABILITY TO PRESENT ORAL ARGUMENT UNDER LOCAL COURT RULE 8.05.07 (GENERALLY REQUIRING A TIMELY ORAL ARGUMENT REQUEST, AS WELL AS NOTICE UPON THE OTHER PARTY, ON THE DAY THE TENTATIVE RULING IS ISSUED).

APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, APRIL 15, 2026, IN DEPARTMENT 12.